

MEMORANDUM TO THE FILE

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

IDENTIFICATION OF SOURCE:

Vendor Name: Berkeley Nucleonics Corp

Vendor City/State: San Rafael, California

Cage: 23908

Total Dollar Value: [REDACTED]

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

The required Arbitrary Waveform Generator (AWG) Model number: 670C-4C-256M-HV4-GPIB comes from the manufacturer Berkeley Nucleonics Corp. [REDACTED]

This AWG will be used in various certified test sets to ensure proper pulsing of various Devices Under Test (DUT). Delivery of AWG is expected within FY 25 and will remain in service through the life of the AWG.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select applicable area below to open specific form)



A. ONLY ONE RESPONSIBLE SOURCE



B. BRAND NAME



C. UNUSUAL AND COMPELLING URGENCY

25WXP0269

A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

3. **OTHER REASONS.** Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.

Resources have been applied to perform appropriate market research, bring in, test and choose the asset that would best perform [REDACTED]
For every asset tested software drivers had to be developed before extensive functionality testing could be performed using available test sets. The market research and testing provided two options that were found to have the accuracy and ability to supply the number of synchronized pulses at the signal level needed [REDACTED]

[REDACTED] If any other AWG is acquired and brought in, then there is risk of it not being able to perform to its specifications accurately enough to use. If an AWG is unable to provide reliable pulses, then the DUT or other equipment could be damaged. Any AWG outside of the Berkeley Nucleonics AWG would require extra resources to develop software and test before it could be used. The time associated with testing any other AWG would not allow it to be used within test sets immediately. It would therefore compromise our ability to provide sufficient sparing, and could result in test sets going down and delays in production of Navy assets.

B. BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits, bids, or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATION/APPROVALS:

A. Technical / Requirements Certifications: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

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Matt Mussman / 8122879739

03/03/2025

Signature

Name (Printed) / Phone #

Date

B. Certification / Approval

Upon the basis of the above statements and information justification, I hereby approve, as the Contracting Officer, the solicitation of the proposed procurement(s) using other than full and open competition.

DAVIDSON.KATH
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Kathy Davidson/812-381-7242

03/25/2025

Contracting Officer Signature

Name (Printed) / Phone #

Date